



CHAPTER 22.

An Act to amend the Water Act, 1945, and for purposes connected therewith. [24th March 1948.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :—

1. Section fifty-nine of the principal Act (which provides for the interpretation of that Act) shall have effect as if for the definition of the expression "statutory water undertakers" contained in subsection (1) of that section there were substituted the following definition :—

Amendment of definition of "statutory water undertakers."

" 'statutory water undertakers' means any company, local authority, board, committee, or other person authorised by a local enactment to supply water and any local authority or board supplying water under the Public Health Act, 1936, and also includes, for the purposes of Part II of this Act only, any local authority authorised to supply water by the said Act of 1936 but not actually supplying water under that Act, but the said expression does not include a railway company or navigation authority having statutory power to sell surplus water or any body or person supplying water solely for the purpose of producing motive power by hydraulic pressure. "

26 Geo. 5. & 1 Edw. 8. c. 49.

2.—(1) Subject to the provisions of this section, an order under section twenty-three of the principal Act, made on the application of persons who propose to become statutory water undertakers and authorising those persons to supply water, may provide—

Combination of certain orders under principal Act.

(a) for transferring to the applicants, whether by agreement or compulsorily, the undertaking or part of the undertaking of any water undertakers, whether statutory or not ;

- (b) for requiring any statutory water undertakers to give to the applicants, or the applicants to give to any such undertakers, a supply of water in bulk (whether within or outside their limits of supply), and for requiring the applicants or those undertakers, as the case may be, to take such a supply ;
- (c) for authorising the compulsory acquisition by the applicants of such rights to take water from any stream or other source as may be specified in the order.

(2) Subject to the provisions of this section, an order under section nine of the principal Act, providing for the constitution of a joint board or joint committee of two or more statutory water undertakers or for the amalgamation of the undertakings or parts of the undertakings of two or more statutory water undertakers, may make provision, in relation to the undertakers constituted by the order, for any purpose authorised by the last foregoing subsection in relation to the applicants for an order under section twenty-three of the principal Act, and may provide—

- (a) for authorising the undertakers to construct, acquire by agreement, alter or continue, and to maintain, water-works and works connected therewith ;
- (b) for authorising the undertakers to raise capital or borrow money for any purposes of their water undertaking.

(3) An order under section twenty-three or section nine of the principal Act which makes provision for any purpose authorised by this section may contain such incidental, consequential and supplementary provisions as the Minister thinks necessary or expedient for that purpose, including provisions for the amendment or repeal of any local enactment and for the transfer of property and liabilities :

Provided that no such order shall, except as provided by section three of this Act, empower the undertakers to acquire compulsorily any land, or shall vary compulsorily the amount of compensation water required by any enactment to be discharged into any water course or the periods during which or the manner in which such compensation water is required to be discharged.

(4) Where application is made under the said section twenty-three or section nine, as the case may be, for an order requiring any statutory water undertakers to give or take a supply of water in bulk, a copy of the notice of the application required by Part I of the First Schedule to the principal Act (which regulates the procedure for making orders under the sections aforesaid) shall be served in accordance with the provisions of paragraph 3 of that Schedule—

- (a) on those undertakers ; and

- (b) on the catchment board for any catchment area, the fishery board for any fishery district, and any river board having jurisdiction over any water-course, from which water is taken by the persons who are to give the bulk supply.

(5) Subsections (3) to (5) of section twenty-six of the principal Act (which provide for securing the provision of compensation water, and for restricting the taking of water, in relation to the acquisition of rights under that section) shall have effect as if references therein to the acquisition of rights under that section included references to the acquisition of the like rights by an order made under section nine or twenty-three of that Act.

(6) Notwithstanding anything in section twenty-three of the principal Act, paragraph 8 of the First Schedule to that Act (which provides that in certain circumstances an order shall be subject to special parliamentary procedure) shall apply to any order under that section which makes provision for any of the matters specified in subsection (1) of this section.

3.—(1) Subject to the provisions of this section, an order under section twenty-three or section nine of the principal Act authorising any persons to construct or alter waterworks or works connected therewith may authorise those persons to acquire compulsorily any land required for the construction or alteration of those works, being land which they could be so authorised to acquire by means of a compulsory purchase order made under section twenty-four of the principal Act, or under that section as amended by the Acquisition of Land (Authorisation of compulsory acquisition of land for construction of waterworks.) 9 & 10 Geo. 6. c. 49.

(2) The provisions of the Schedule to this Act shall have effect in relation to an order under the said section twenty-three or the said section nine which authorises any such acquisition as aforesaid.

4.—(1) Subsection (1) of section twelve of the principal Act (which authorises the making of agreements between statutory water undertakers and other persons for the supply of water in bulk) shall have effect as if for the words "Any statutory water undertakers may enter into an agreement with any other persons" there were substituted the words "An agreement may be made between any statutory water undertakers and any other persons." Supply of water in bulk.

(2) An order made under subsection (1) of section twenty-three of the principal Act on the application of persons who propose to become statutory water undertakers may authorise the applicants to supply water in bulk only.

(3) Any order made by virtue of the last foregoing subsection shall specify the area which, for the purposes of any provisions

of the principal Act, is to be deemed to be the limits of supply of the undertakers ; and without prejudice to any other powers exercisable by means of an order under the said section twenty-three or under section twelve of the principal Act, the order may authorise or require the applicants to give a supply of water in bulk to any statutory water undertakers specified in the order, being undertakers authorised to supply water in any part of the said area, and may authorise or require those undertakers to take such a supply from the applicants :

Provided that—

- (a) where the order requires the giving and taking of such a supply as aforesaid, paragraph 8 of the First Schedule to the principal Act (which provides that in certain circumstances an order shall be subject to special parliamentary procedure) shall apply thereto notwithstanding anything in section twenty-three of the principal Act ; and
- (b) where the order authorises the giving and taking of such a supply, paragraph 23 of that Schedule (which provides that in certain other circumstances an order under section twelve of the principal Act approving an agreement for a bulk supply shall be subject to special parliamentary procedure) shall apply thereto as it applies to an order under the said section twelve approving an agreement to the like effect.

(4) Paragraph (ii) of the proviso to subsection (1) of the said section twenty-three (which requires the consent of certain local authorities and statutory water undertakers for an order under that section authorising applicants to supply water in any area) shall not apply to an order made by virtue of subsection (2) of this section.

**Amendments
of s. 14 of
principal Act.**

5.—(1) No licence shall be required under subsection (3) of section fourteen of the principal Act (which prohibits the construction of boreholes for the purpose of abstracting underground water in certain areas except with the licence of the Minister) in respect of the carrying out of any experimental boring or other work for the purpose of ascertaining the presence of underground water or the quality or quantity of such water, if the work is carried out, with the consent of the Minister and in accordance with any conditions subject to which that consent is given, by a person who has applied for a licence under the said subsection (3).

(2) Subsection (5) of the said section fourteen (which, amongst other things, restricts the abstraction of underground water from certain wells, boreholes or works authorised by subsection (4) of that subsection, except for the purpose for which they were constructed) shall have effect as if the references therein to paragraphs (a) and (c) of the said subsection (4) included a reference to subsection (1) of this section.

(3) References in the said section fourteen to the construction or extension of any well, borehole, or other work for the purpose of abstracting underground water shall be deemed to include references to the installation or modification of machinery or other apparatus for the purpose of abstracting additional quantities of such water :

Provided that no statutory water undertakers shall be required by virtue of this subsection to obtain a licence under the said section fourteen authorising the installation or modification of machinery or other apparatus for the purpose of abstracting underground water from a well, borehole or other work if the quantity of water which may be so abstracted is limited by any local enactment.

(4) Subsection (10) of the said section fourteen shall have effect as if after the word "recoverable" there were inserted the word "summarily".

6. Section sixteen of the principal Act (which empowers Amendment of s. 16 of principal Act. statutory water undertakers to prohibit or restrict temporarily the use of hosepipes in certain circumstances) shall have effect as if at the end of the section there were added the following subsection :—

"(5) During any period when a prohibition or restriction imposed under this section is in force, any officer of the undertakers shall, on producing if so required some duly authenticated document showing his authority, have a right at all reasonable hours to enter any premises to which the prohibition or restriction applies for the purpose of ascertaining whether there is or has been any contravention of the prohibition or restriction ; and the section of this Act relating to entry of premises shall apply to any such right of entry."

7.—(1) Subsection (1) of section forty-two of the principal Act Amendments of s. 42 of principal Act. (which requires statutory water undertakers being companies to prepare annual abstracts of the accounts of their undertakings) shall have effect as if the words "in such form as the Minister may direct," were omitted, and as if at the end of the subsection there were added the following paragraph :—

"The Minister may give directions as to the form of the abstracts to be prepared by statutory water undertakers under this subsection, and such directions may be given either in relation to any particular undertakers or in relation to all undertakers of any specified class."

(2) Subsection (2) of the said section forty-two (which requires such undertakers as aforesaid to transmit to the Minister and to certain local authorities copies of the abstracts prepared under that section) shall have effect as if after the word "certified" there were inserted the words "and a copy of the balance sheet of the undertakers for the year to which the abstract relates."

Power to
survey and
search for
water on land
proposed to be
purchased.

8.—(1) The Minister may, on application made to him by any local authority or statutory water undertakers who propose to acquire any land for the purposes of their water undertaking or proposed water undertaking, authorise them to survey that land in accordance with the provisions of this section :

Provided that notice of any such application shall be given by the authority or undertakers to the owner and occupier of the land, and the Minister shall, before giving his authority under this subsection, consider any representations made to him by any such owner or occupier within fourteen days after the receipt of the notice.

(2) Where any local authority or statutory water undertakers are authorised as aforesaid to survey any land under this section, any officer of the authority or undertakers authorised for the purpose shall, on producing if so required some duly authenticated document showing his authority, have a right at all reasonable hours to enter on and survey the land ; and section forty-eight of the principal Act (which makes provision with respect to the exercise of certain powers of entry conferred by that Act) shall apply to any right of entry conferred by this section.

(3) The power to survey land conferred by this section shall include power to carry out experimental borings or other works for the purpose of ascertaining the nature of the subsoil or the presence of underground water therein, or the quality or quantity of such water, and to reinstate the land after carrying out any such works :

Provided that a person shall not carry out any works authorised by this subsection on land which is occupied unless at least twenty-four hours notice of his intention so to do has been given to the occupier of the land ; and if the land is held by any statutory undertakers and those undertakers object to the proposed works on the ground that the carrying on of their undertaking, the works shall not be carried out except with the authority of the appropriate Minister.

(4) Where any land on which entry is made in pursuance of this section is damaged in the exercise of any power thereby conferred, any person interested in the land may recover compensation in respect of that damage from the local authority or undertakers on whose behalf the entry was effected ; and where in consequence of the exercise of such a power any person is disturbed in his enjoyment of any land, he may recover compensation in respect of the disturbance from that local authority or those undertakers.

(5) If any damage or injury is caused by the escape of water from any land on which works have been carried out in pursuance of this section (not being damage in respect of which compensation is payable under the last foregoing subsection) nothing in this

section shall be construed as exonerating the local authority or undertakers on whose behalf the works were carried out from any liability in respect of that damage to which they would be subject if the works had been carried out otherwise than in the exercise of statutory powers.

(6) Any question of disputed compensation under subsection (4) of this section shall be determined by arbitration in the manner provided by section ninety-one of the Third Schedule to the principal Act.

(7) Nothing in this section shall be construed as authorising the carrying out of works, or the abstraction of water, in contravention of restrictions imposed by section fourteen of the principal Act.

9. Without prejudice to any enactment authorising the payment of contributions by a local authority to any association of local authorities, any statutory undertakers, whether a local authority or not, may pay reasonable subscriptions whether annually or otherwise to the funds of any association of water undertakers formed for the purpose of consultation as to the common interests of those undertakers and the discussion of matters relating to the supply of water.

Subscriptions to associations of water undertakers.

10.—(1) Where any main is laid alongside and within sixty feet of the middle of a street, then, for the purposes of the definition of "communication pipe" contained in section one of the Third Schedule to the principal Act, the land in which the main is laid, and any land between the main and the street, shall be deemed to form part of that street, and references in that definition to the part of the street in which the main is laid, and to the boundary of the street in which the main is laid, shall be construed accordingly:

Amendment of definition of "communication pipe" etc.

Provided that where the premises supplied with water lie between any such main as aforesaid and the street, only that land in which the main is laid together with any land between the main and those premises shall be deemed to form part of the street.

(2) Where any main is laid as mentioned in the foregoing subsection, the power of the undertakers to lay service pipes, stopcocks and other fittings under section twenty-one of the said Third Schedule shall include power, with the consent of every owner and occupier of the land, and subject to payment of compensation for any damage done by the undertakers, to lay such pipes, stopcocks and fittings in, on or over any land which is deemed to form part of a street for the purposes specified in the foregoing subsection.

(3) Any consent required for the purposes of the last foregoing subsection shall not be unreasonably withheld, and any question

whether such consent is, or is not, unreasonably withheld shall be referred to and determined by the Minister ; and any dispute as to the amount of compensation to be paid under the last foregoing subsection shall be determined by arbitration in the manner provided by section ninety-one of the said Third Schedule.

(4) For the avoidance of doubt it is hereby declared that the provisions of section forty-four of the said Third Schedule (which relates to the vesting in the undertakers of communication pipes) apply to any pipe laid before the commencement of this Act which, by virtue of this section, is deemed to be a communication pipe.

Other
amendments
of Third
Schedule to
principal Act.

11.—(1) Section seven of the Third Schedule to the principal Act (which enables the undertakers to acquire easements for underground works) shall have effect as if for subsection (1) of that section there were substituted the following subsection :—

“(1) Where the undertakers are authorised by the special Act to acquire any land compulsorily for the purpose of executing any underground works, they may, instead of purchasing the land, purchase only such easements and rights over or in the land as may be sufficient for the said purpose, and the Lands Clauses Acts, and the enactments relating to the compensation payable in respect of the compulsory acquisition of land, shall apply accordingly subject to any exceptions and modifications with which those enactments are incorporated with the special Act and to any other necessary adaptations.”

8 & 9 Geo. 6.
c. 42.

(2) Subsection (1) of section thirty of the Third Schedule to the principal Act (which confers on owners or occupiers of premises the right on certain conditions to demand and receive a supply of water for domestic purposes) shall have effect as if, at the end of the proviso to that subsection, there were added the words “or as requiring the undertakers to supply water for any premises in which any of the water fittings are not in accordance with the requirements of any byelaws made under section seventeen of the Water Act, 1945, or of any byelaws or regulations made under any other enactment for purposes similar to those for which byelaws may be made under the said section seventeen, being byelaws or regulations applicable to those premises.”

(3) Section sixty-three of the Third Schedule to the principal Act (which enables the undertakers to repair supply pipes) shall have effect as if for subsection (2) of that section there were substituted the following subsection :—

“(2) Where several houses or other buildings in the occupation of different persons are supplied with water by one common supply pipe belonging to the owners or occupiers of the houses or buildings, the amount of any

such expenses as aforesaid and any expenses reasonably incurred by the undertakers in the maintenance of that pipe may be recovered in manner aforesaid from the owners of those premises in such proportions as, in case of dispute, may be settled by the court, but without prejudice to the rights and obligations, as between themselves, of the owners and occupiers of those premises respectively."

(4) Subsection (1) of section sixty-four of the said Third Schedule (which imposes penalties for waste of water by non-repair of water fittings) shall have effect as if for the words "If any person" there were substituted the words "If the owner or occupier of any premises," and for the words "water supplied to him" there were substituted the words "water supplied to those premises."

12.—(1) Where, under subsection (3) of section one hundred and sixteen of the Public Health Act, 1936, the Minister approves the construction by a local authority of works for taking or intercepting water, he may by order (to be made by statutory instrument) impose on that authority such restrictions or obligations as appear to him to be expedient for the purpose of or in connection with the carrying out of those works. **Amendment of Public Health Act, 1936.**

(2) Notwithstanding anything in subsection (2) of section one hundred and twenty-seven of the Public Health Act, 1936, (which empowers local authorities to require that water supplied by them to certain premises shall be taken by meter) a local authority who supply water under that Act shall not be entitled to require that water supplied for domestic purposes to premises used as a house shall be taken by meter by reason only that part of the premises is used by the same occupier for purposes of a profession.

13.—(1) Subsection (4) of section twenty-four of the principal Act (which relates to the compulsory acquisition of land by local authorities and statutory water undertakers) and the Acquisition of Land (Authorisation Procedure) Act, 1946, in its application to the acquisition of land under the said subsection (4), shall have effect as if references therein to a local authority included references to a development corporation established under section two of the New Towns Act, 1946. **Provisions relating to New Towns development corporations.**

9 & 10 Geo. 6.
c. 68.

(2) Notwithstanding anything in paragraph (c) of subsection (1) of section twenty-three of the principal Act, a development corporation established as aforesaid shall not be authorised by means of an order under the principal Act to raise capital or borrow money for any purpose.

Miscellaneous
provisions and
consequential
amendments.

14.—(1) Every statutory water undertaker, not being a local authority or a joint committee or joint board appointed jointly by two or more local authorities, shall make to the Minister such reports and returns and give him such information with respect to their functions as he may require, or as may be required by either House of Parliament.

(2) The power conferred on the Minister by section thirty-three of the principal Act to repeal or amend, on the application of any statutory water undertakers, any local enactment relating to the supply of water by those undertakers shall include power to consolidate any such local enactments as aforesaid, with or without amendments.

(3) Paragraph (a) of the proviso to subsection (1) of the said section thirty-three (which provides that an order under that section shall not vary the quantity of compensation water required by any local enactment to be discharged into any water-course) shall have effect as if, after the word "vary," there were inserted the word "compulsorily".

(4) Section thirty-seven of the principal Act (which requires statutory water undertakers to provide a domestic supply for new buildings) shall have effect as if references therein to the laying or providing of mains included references to the construction of service reservoirs.

(5) Subsection (6) of section nine of the principal Act (which precludes the constitution under that section of any joint board which could be constituted under section six of the Public Health Act, 1936) and paragraph 10 of the Second Schedule to the principal Act (which restricts the right of appeal to the House of Lords from a decision of the Court of Appeal on application made under that Schedule) shall cease to have effect.

52 & 53 Vict.
c. 63.

(6) The Interpretation Act, 1889, shall apply to the interpretation of any order made under the principal Act after the commencement of this Act as it applies to the interpretation of an Act of Parliament, and for the purposes of section thirty-eight of the Interpretation Act, 1889 (which relates to the effect of repeals) any such order and any order repealed thereby shall be deemed to be an Act of Parliament.

(7) In accordance with the foregoing provisions of this Act, section twenty-three of the principal Act shall have effect subject to the following amendments:—

- (a) at the beginning of paragraph (i) of the proviso to subsection (1), there shall be inserted the words "except as otherwise provided by the Water Act, 1948," and the words "land or" in that paragraph shall be omitted;
- (b) in subsection (2) the words "other than paragraph 8," shall be omitted and at the end of the subsection there shall be added the following proviso:—

"Provided that paragraph 8 of that Schedule shall not apply except in the cases provided by the Water Act, 1948."

15.—(1) In this Act the following expressions have the meanings hereby respectively assigned to them, that is to say:—

Interpretation,
citation,
construction
and extent.

“ principal Act ” means the Water Act, 1945 ;

“ statutory undertakers ” means persons authorised by any enactment to carry on any railway, light railway, tramway, road transport, water transport, canal, inland navigation, dock, harbour, pier or lighthouse undertaking, or any undertaking for the supply of electricity, gas, hydraulic power, or water ;

“ appropriate Minister ” means—

(a) in relation to statutory undertakers being statutory water undertakers, the Minister ;

(b) in relation to statutory undertakers carrying on an undertaking for the supply of electricity, gas or hydraulic power, the Minister of Fuel and Power ;

(c) in relation to any other statutory undertakers, the Minister of Transport.

(2) References in this Act to the Third Schedule to the principal Act shall include references to that Schedule as incorporated by section one hundred and twenty of the Public Health Act, 1936, or by any other enactment in force at the commencement of this Act.

(3) This Act may be cited as the Water Act, 1948, and the principal Act and this Act may be cited together as the Water Acts, 1945 and 1948.

(4) Except where the context otherwise requires, references in this Act to any enactment shall be construed as references to that enactment as amended by any subsequent enactment, including this Act.

(5) This Act shall be construed as one with the principal Act, and without prejudice to the generality of the foregoing provision, references in the principal Act to any provision of that Act shall be construed as references to that provision as amended by this Act.

(6) This Act shall not extend to Scotland or Northern Ireland.

Section 3.

SCHEDULE.

ORDERS UNDER S. 23 OR S. 9 OF PRINCIPAL ACT AUTHORISING COMPULSORY ACQUISITION OF LAND.

1. The order shall incorporate the Lands Clauses Acts, and those Acts and the enactments relating to the compensation payable in respect of the compulsory acquisition of land shall apply accordingly subject to the exceptions and modifications specified in Parts I and III of the Second Schedule to the Act of 1946, and to such other exceptions and modifications (if any) as may be specified in the order :

Provided that where the undertakers are not a local authority within the meaning of the Act of 1946, paragraphs 3 and 4 of the said Second Schedule shall not apply.

2.—(1) A copy of the notice of the order required by paragraph 2 or paragraph 11 of the First Schedule to the principal Act to be published shall be served in accordance with the provisions of paragraph 3 or paragraph 12 of that Schedule on every owner, lessee and occupier (except tenants for a month or for any period less than a month) of any land authorised by the draft order to be compulsorily acquired.

(2) Where any such land as aforesaid is ecclesiastical property (that is to say land belonging to any ecclesiastical benefice, or being or forming part of a church subject to the jurisdiction of the bishop of any diocese or the site of such a church, or being or forming part of a burial ground subject to such jurisdiction) a copy of the notice aforesaid shall also be served as aforesaid on the Ecclesiastical Commissioners.

3. Where any such objection as is mentioned in paragraph 7 or paragraph 16 of the First Schedule to the principal Act relates to the compulsory acquisition of land, the Minister may require the objector to state in writing the grounds thereof, and if it is certified by the Minister that the objection relates exclusively to matters that can be dealt with by the tribunal by whom compensation for the compulsory acquisition is to be assessed—

(a) the Minister may disregard the objection for the purposes of the said paragraph 7 or paragraph 16, as the case may be ; and

(b) where paragraph 8 or paragraph 17 of the said First Schedule applies to the order, the objection shall be disregarded for the purposes of that paragraph.

4. Notwithstanding anything in paragraph 6 or paragraph 15 of the First Schedule to the principal Act, the order as made by the Minister shall not, unless all persons interested consent, authorise the undertakers to acquire compulsorily any land which they would not have been so authorised to acquire if it had been made in terms of the draft submitted to or prepared by him.

5. Subject as hereinafter provided, Part III of the First Schedule to the Act of 1946 (which makes special provision with respect to land of local authorities and statutory undertakers, common land, inalienable land of the National Trust and ancient monuments) shall

apply to the order, whether or not the undertakers are a local authority within the meaning of that Act, as it applies to a compulsory purchase order :

Provided that—

- (a) nothing in this paragraph shall be construed as authorising the compulsory acquisition by undertakers not being such a local authority as aforesaid of any such land as is mentioned in subsection (6) of section twenty-four of the principal Act ; and
- (b) where paragraph 8 or paragraph 17 of the First Schedule to the principal Act applies to the order, this paragraph shall have effect as if for the reference to Part III of the First Schedule to the Act of 1946 there were substituted a reference to paragraph 10 of the last-mentioned Schedule.

6. As soon as may be after the order has been made, the undertakers shall publish in one or more local newspapers circulating in the locality in which the land authorised to be acquired is situated a notice describing the land and stating that the order has been made authorising the undertakers to acquire it compulsorily, and naming a place where a copy of the order as made may be inspected at all reasonable hours ; and shall serve a like notice and copy of the order on any persons on whom notices with respect to the land were required to be served by virtue of paragraph 2 of this Schedule.

7. Part IV of the First Schedule to the Act of 1946 (which relates to the validity and date of operation of compulsory purchase orders under that Act) shall apply to the order as if it were a compulsory purchase order and as if this Act were included among the enactments specified in subsection (1) of section one of that Act ; and subparagraph (1) of paragraph 15 of that Schedule shall have effect accordingly, in relation to the order, as if for the words " this Act," in the third place where those words occur, there were substituted the words " the Schedule to the Water Act, 1948," and as if after the words " this Schedule," in the second place where those words occur, there were inserted the words " or the Schedule to the Water Act, 1948 " :

Provided that nothing in this paragraph shall prohibit or restrict the taking of legal proceedings for questioning the order so far as it relates to matters other than the compulsory acquisition of land.

8.—(1) In this Schedule the expression " the Act of 1946 " means the Acquisition of Land (Authorisation Procedure) Act, 1946, and the expression " the undertakers " means the persons authorised by the order to acquire land compulsorily.

(2) The provisions of this Schedule shall apply to a development corporation established under section two of the New Towns Act, 1946, as if it were a local authority within the meaning of the Act of 1946.